Rocky And 4 Others vs State Of U.P. And Another on 15 March, 2024

Author: Rajeev Misra

Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:46850

Reserved on: 1.3.2024

Delivered on: 15.3.2024

Court No. - 83

Case :- CRIMINAL REVISION No. - 485 of 2023

Revisionist :- Rocky And 4 Others

Opposite Party :- State of U.P. and Another

Counsel for Revisionist :- Alok Tiwari

Counsel for Opposite Party :- G.A.,Hemant Sharma

Hon'ble Rajeev Misra,J.
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1. Heard Mr. Alok Tiwari, the learned counsel for revisionist and the learned A.G.A. for State. Mr. Hemant Sharma, Advocate, who has put in appearance on behalf of opposite party-2 by filing his vakalatnama. Though the name of Mr. Hemant Sharma, the learned counsel for opposite party-2 is duly published in the cause list but neither he nor anyone on his behalf has appeared to oppose this criminal revision even in revised call.

2. Perused the record.

3. This criminal revision is directed against the ex-parte judgement and order dated 24.12.2021, passed by Civil Judge (Junior Division)/Fast Track Court, Court No.3, District Bulandshahr in Misc. Case No. 237 of 2020 (Smt. Indu Rani Vs. Rockyh and others) under Section 12 of Protection of Women from Domestic Violence Act, 2005, Police Station- Narsaina, District Bulandshahr as well as the order dated 22.11.2022, passed by Additional Sessions Judge, Fast Track Court, Court No. 2, Bulandshahr in Criminal Appeal No. 193 of 2022 (Rocky and Others Vs. State of U.P. and another), whereby aforesaid appeal filed by revisionist against the order dated 24.12.2021 has been dismissed.

4. The brief facts necessary for appreciating the issues involved in this criminal revision may be summarized in a nutshell: The marriage of opposite party-2 was solemnized with revisionist-1 on 21.4.2015. However, on 15.11.2019, domestic violence was committed upon opposite party-2 and an attempt was also made to immolate her. Thereafter, opposite party-2 was ousted from her marital home. Consequently, since then opposite party-2 is residing separately at her parental home.

5. Since opposite party-2 did not have any independent source of income nor sufficient means to sustain herself, she therefore faced despair and destitution. Accordingly in order to overcome the same, opposite party-2 filed an application under section 12 of the Protection of Women from Domestic Violence Act, 2005 (herein after referred to as "Act, 2005") claiming maintenance. Apart from above, relief under Section 18 i.e. "Protection orders", Section-19 i.e. "Residence Orders" Section-20- "Monetary relief" and Section-22 i.e. "Compensation orders" were also claimed. Aforementioned application filed by opposite party-2 came to be registered as Misc. Case No. 237 of 2020 (Smt. Indu Rani Vs. Rocky and others). Notice were issued to opposite parties therein i.e. revisionist herein but inspite of service of notice, none of the revisionist appeared before Court below to oppose the claim of opposite party-2. The trial Court on the basis of pleadings raised by opposite party-2 and the evidence adduced by her came to the conclusion that opposite party-2 is legally wedded wife of revisionist-1 Rocky and domestic violence has been committed upon her on account of which she is reisding separately. In view of above, the concerned Magistrate allowed aforesaid misc. case whereby, monthly maintenance was awarded in favour of opposite party-2 to the tune of Rs. 2,000/- per month towards maintenance under section 20, compensation to the tune of Rs. 20,000/- under section 22 and further direction were also issued in terms of Section 18 and 19 of Act, 2005.

6. Feeling aggrieved by above, ex-parte judgement and order dated 24.12.2021, passed by trial Court, the revisionists filed an appeal before Appellate Court which was registered as Appeal No. 193 of 2022 (Rocky and Others Vs. State of U.P. and another).

7. It is apposite to mention here that opposite party-1 had already initiated proceedings under section 13(1)(i) and (i)a of Hindu Marriage Act for divorce. Same was registered as Original Suit No. 1353 of 2022 (Rocky Vs. Smt. Indu Rani) in the Court of Principal Judge, Family Court, Ghaziabad. Aforesaid suit came to be allowed exparte against opposite party-2 vide judgement and order dated 13.5.2022. During pendency of appeal, the material pertaining to aforesaid fact was brought to the notice of Appellate Court. In the light of above and also the ground raised in the memo of appeal

Court below in order to effectively decide the appeal framed following points of determination in the appeal.

> (i) Whether the amount of maintenance awarded by Court below is excessive.
>
> (ii) Whether revisionist had no knowledge of Case No. 237 of 2020 (Smt. Indu Rani Vs. Rocky and others) and opposite party-2 has obtained the ex-parte order in the aforesaid case by misleading the Court.
>
> (iii) Whether in view of material on record the impugned judgement dated 24.12.2021 is liable to be set aside on the ground that the same is illegal.

8. Court below upon evaluation of the grounds raised and pressed in support of appeal as well as the material on record came to the conclusion that no illegality has been committed by trial Court in passing the order impugned in appeal dated 24.12.2021. All the three points of determination so framed by Court below were answered in favour of opposite party-2. Consequently, in view of above, Court below dismissed the appeal filed by opposite party-2 vide judgement and order dated 22.11.2022.

9. Thus feeling aggrieved by the judgement and order dated 24.12.2021 and 22.11.2022, revisionists have now approached this Court by means of present criminal revision.

10. Learned counsel for revisionist has raised a short but an interesting issue in this criminal revision. He contends that it is an admitted fact that the marriage of opposite party-2 with revisionist-1 came to an end with the passing of judgement and decree dated 31.5.2022, passed in Original Suit No. 1353 of 2022 (Rocky Vs. Smt. Indu Rani). Copy of same is on record at page 252 of the paper book.

11. On the above premise, the learned counsel for revisionist contends that though this fact was brought to the notice of Appellate Court, however, the Appellate Court has not dealt with the effect of aforesaid judgement and decree upon the claim raised by opposite party-2 under the provisions of Protection of Woman from Domestic Violence Act but has simply dismissed the Appeal filed by revisionist on the ground that same relates to other proceedings.

12. It is thus contended by the learned counsel for revisionists that once the marital relationship in between the revisionist-1 and opposite party-2 came to an end with the passing of judgement and decree dated 31.5.2022, opposite party-2 had no right to claim maintenance from revisionist after 31.5.2022 under the Protection of Women from Domestic Violence Act. Reference is made to the Section 2(a) of the aforesaid Act which defines an aggrieved person as follows: "aggrieved person" means any woman who is , or has been, in a domestic relationship with the respondent and who alleged to have been subjected to any act of domestic violence by the respondent. He has then referred to Section 2(f) which defines domestic relationship as under: "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage, or through a relationship in

the nature of marriage, adoption or are family members living together as a joint family. With reference to above, learned counsel for revisionist contends that since when the domestic relationship in between the opposite party-1 and revsionist-1 has come to an end on account of a decree of divorce having been granted by Court and the basis of domestic relationship in between revisionist-1 and opposite party-2 was admittedly marriage solemnized between the parties, then opposite party-2 cannot claim any maintenance from revisionist-1 after the judgement and decree dated 31.5.2022. In the alternative, it is next contended that in view of aforesaid change circumstances, the remedy of opposite party-2 was to approach the competent Court under Section 125 Cr.P.C. However, Court below without adverting to the aforesaid aspects of the matter has simply dismissed the appeal filed by revisionist by passing an order of affirmance which is liable to be set aside by this Court. It is thus urged that Court below has erred in not modifying the judgement and order dated 24.12.2021 to the effect that opposite party-2 shall be entitled to claim maintenance from revisionist only till 31.5.2022. As such, the orders impugned in present criminal revision are liable to be modified by this Court.

13. Per contra, the learned A.G.A. representing the state/opposite party-1 has however, opposed the present criminal revision. He, submits that order impugned in present criminal revision are perfectly just and legal and same are not liable to be interferede with. To lend support to his submission, he has referred to the finding recorded by both the Courts below in the orders impugned.

14. Having heard the learned counsel for revisionist, the learned A.G.A. for state and upon perusal of record, prima facie the submissions urged by learned counsel for revisionist in support of this criminal revision appears to be attractive at the first flush. However, upon deeper scrutiny, the court finds that the same are devoid of substance and therefore, liable to be rejected.

15. The issue as to whether a divorced woman can claim maintenance under the Protection of Women from Domestic Violence Act, 2005 is no longer res intigra and stands decided by Supreme Court in Juveria Abdul Majid Patni Vs. Atif Iqbal Mansoori and Another, (2014) 10 SCC 736. In paragraph 9 of the report, the Court framed the following issues. For ready reference, the same is reproduced herein under:

> "9. The questions that arise for our consideration are:
>
> (i) Whether divorce of the appellant and the first respondent has taken place on 9-5-2008? and
>
> (ii) Whether a divorced woman can seek for reliefs against her ex-husband under Sections 18 to 23 of the Domestic Violence Act, 2005?"

16. Ultimately, in paragraph 30 of the report the court delineated its views as under:

> "30. An act of domestic violence once committed, subsequent decree of divorce will not absolve the liability of the respondent from the offence committed or to deny the

> benefit to which the aggrieved person is entitled under the Domestic Violence Act, 2005 including monetary relief under Section 20, child custody under Section 21, compensation under Section 22 and interim or ex parte order under Section 23 of the Domestic Violence Act, 2005."

17. The issue involved in present criminal revision again cropped up for consideration before two Judges Bench of Supreme Court in Prabha Tyagi Vs. Kamlesh Devi, (2022) 8 SCC 90. The Court upon consideration of entire gamut of case law including the views expressed by different High Courts, ultimately, crystalized the issues, which fell for consideration and answered the same accordingly in paragraph 75 of the report "75. In view of the above discussion, the three questions raised in this appeal are answered as under:

> 75.1. ?(i) Whether the consideration of Domestic Incidence Report is mandatory before initiating the proceedings under the Domestic Violence Act, 2005 in order to invoke substantive provisions of Sections 18 to 20 and 22 of the said Act??

It is held that Section 12 does not make it mandatory for a Magistrate to consider a domestic incident report filed by a Protection Officer or service provider before passing any order under the DV Act. It is clarified that even in the absence of a domestic incident report, a Magistrate is empowered to pass both ex parte or interim as well as a final order under the provisions of the DV Act.

75.2. ?(ii) Whether it is mandatory for the aggrieved person to reside with those persons against whom the allegations have been levied at the point of commission of violence??

It is held that it is not mandatory for the aggrieved person, when she is related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or are family members living together as a joint family, to actually reside with those persons against whom the allegations have been levelled at the time of commission of domestic violence. If a woman has the right to reside in the shared household under Section 17 of the DV Act and such a woman becomes an aggrieved person or victim of domestic violence, she can seek reliefs under the provisions of the DV Act including enforcement of her right to live in a shared household.

75.3. ?(iii) Whether there should be a subsisting domestic relationship between the aggrieved person and the person against whom the relief is claimed??

It is held that there should be a subsisting domestic relationship between the aggrieved person and the person against whom the relief is claimed vis--vis allegation of domestic violence. However, it is not necessary that at the time of filing of an application by an aggrieved person, the domestic relationship should be subsisting. In other words, even if an aggrieved person is not in a domestic relationship with the respondent in a shared household at the time of filing of an application under Section 12 of the DV Act but has at any point of time lived so or had the right to live and has been subjected to domestic violence or is later subjected to domestic violence on account of the domestic relationship, is entitled to file an application under Section 12 of the DV Act."

18. When the issue raised in hand is examined in the light of the pronouncements of the Supreme Court as noted herein above, the inevitable conclusion is that a divorce women is also entitled to claim maintenance under the Protection of women from Domestic Violence Act, 2005.

19. In view of the discussions made above, the present revision fails and is liable to be dismissed.

20. It is accordingly dismissed.

21. However, in the facts and circumstance of the case, there shall be no order as to costs.

Order Date :- 15.3.2024 Arshad